

the board offered the parties a half-hour suspension of the oral proceedings to enable them to study the fuller version of the document with the help of the interpreters.

In T 834/14 while the opposition division had accepted to consider other objections raised by the opponent only during the oral proceedings, which would normally have given a right to file a response to these new objections, the fact that there was one objection which had been on file right from the start of the opposition proceedings and which could and should have been addressed earlier seemed to the board to be enough to justify the opposition division refusing that any new requests be filed. Such a decision by the opposition division might be considered harsh, but in the case in hand the board found that it did not constitute a substantial procedural violation.

c) Cases where no new claims or relevant documents were introduced

In T 195/84 (OJ 1986, 121) the appellant (patentee) objected at the oral proceedings that new grounds on inventive step were presented to which he had not had an opportunity to reply. The board did not share this opinion as the appellant had been aware that such prior art existed, and had thus had sufficient time to consider it in full. Furthermore, he had not requested any additional time and had not asked for an adjournment.

In T 327/92 the opposition division, at oral proceedings, had relied on a document as closest prior art against an amended main claim, which had been cited in the opposition against a dependent claim only. The board did not consider this a substantial procedural violation, as the patentee was dealing with a document which had always been part of the opposition, and could further examine this document at the oral proceedings.

2.6.2 Introduction of new arguments

In T 248/92 the examining division had based its decision on arguments submitted for the first time during oral proceedings. The board held that the examining division's decision had not been taken contrary to Art. 113(1) EPC. Although one of the purposes of oral proceedings was to settle as far as possible all outstanding questions relevant to a decision, they did not have a constraining effect in the sense of requiring an immediate decision to be taken at the end of those proceedings. If the appellant had felt the need for further reflection, he could have asked for the oral proceedings to be adjourned or for the proceedings to be continued in writing so that he could study carefully the newly introduced arguments, which had obviously been crucial to the decision.

In T 623/12 the opposition division had found, on the basis of an argument first submitted by the opponent during the oral proceedings, that several auxiliary requests did not comply with Art. 123(2) EPC. The opposition division gave the patent proprietor only one opportunity to file a new claim, based on one of the previous auxiliary requests, and warned that "other requests may suffer from other deficiencies under Art. 123(2) EPC". It then decided that the new auxiliary request still did not comply with Art. 123(2) EPC. According to the board, the opposition division's warning did not provide the patentee with a basis for an informed choice since neither the objections nor the requests affected by them were specified. By acting in this manner, the opposition division did not exercise its

discretion in respect of the admissibility of the patentee's late-filed request but arbitrarily decided not to allow the request. This arbitrary decision deprived the patent proprietor of a proper opportunity to comment on the admissibility of its further request and to reply to the objections of the opposing party.

In T.1014/10 the appellant (patent proprietor) argued that during the opposition proceedings it had been given no opportunity to study the opponent's submissions because they were delivered to its office only on the day of the oral proceedings. The board observed that it was the duty of the parties – and of the board – to check the content of the electronic file in order to make sure that no submission had been added in the days before the oral proceedings. Moreover, the proprietor could have requested an interruption of the oral proceedings to study the submissions, or even asked the opposition division not to admit them into the proceedings. As shown by the minutes, the proprietor did not make use of these procedural options. Under these circumstances, the late-filed submissions, which furthermore did not contain any new facts, were to be put on the same footing as new arguments which might have been put forward and discussed anyway during the oral proceedings. The board did not see any violation of Art. 113 EPC.

2.6.3 Introduction of a new ground of opposition by the opposition division

In T.515/05 the appellant had based its opposition only on the grounds of Art. 100(a) EPC. In the summons to the oral proceedings the opposition division itself introduced a further ground for opposition under Art. 100(b) EPC. At the beginning of the oral proceedings the chairman of the opposition division stated that no discussion of the ground of opposition under Art. 100(b) EPC would take place because it had not been sufficiently substantiated by the opponent. Denying the appellant the opportunity to comment on this ground, albeit introduced by the opposition division itself, was considered a substantial procedural violation. The fact that the appellant did not file written arguments in response to the summons to attend the oral proceedings did not deprive it of its right to be heard. The appellant was entitled to expect that it would still have an opportunity to comment on this new ground during the oral proceedings.

2.6.4 Hearing witnesses

In T.142/97 the board held that the opposition division had violated the opponent's right to be heard under Art. 113(1) EPC by not hearing the witness offered in connection with a prior use that had been adequately substantiated in the notice of opposition. See also T.959/00 in which the board held that the opposition division's failure to hear the witness, and the absence in the decision under appeal of any reference to a reason why it had not been necessary to hear the witness, amounted to a fundamental procedural violation of the right to be heard.

In T.269/00 the board held that the case before it differed from T.142/97 because the ground of prior use was not adequately substantiated during the opposition period, but completed piecemeal during the opposition proceedings. The board concluded that not hearing the witness did not amount to a substantial procedural violation.

In T. 474/04 (OJ 2006, 129), the board held that if assertions made in an unsworn witness declaration remained contested, a request to hear the witness had to be granted before these assertions were made the basis of a decision against the contesting party.

In T. 909/03 the hearing of a witness took place in the morning and the oral proceedings continued in the afternoon. The board held that it was not necessary for a party to be given a copy of the minuted testimony before commenting on that testimony. During the oral proceedings the party had been given sufficient opportunity to comment. No substantial procedural violation had thus occurred.

In T. 716/06 the board confirmed that where oral evidence of a witness was requested by a party the competent department should grant this request only if it considered this oral evidence necessary to clarify matters that were decisive for the decision to be taken. However, where an opponent requested that a witness be heard on an alleged public prior use and on the disclosure of a certain feature by this prior use, the competent department as a rule had to grant this request before deciding that the alleged public prior use was neither established nor constituted a novelty-destroying state of the art. See also T. 1100/07.

2.6.5 Oral submissions of an accompanying person

For the denial of a request for an accompanying person to present oral submissions see chapter V.B.4.3.18 "Further examples of unsuccessful petitions". See also chapter III.V.5. "Oral submissions by an accompanying person".

2.7. The right to be heard in case of the non-attendance of oral proceedings

The proceedings may continue without the duly summoned but non-attending party (R. 115(2) EPC). The case law of the boards demonstrates, however, that the non-attending party's right to be heard under Art. 113 EPC must not be ignored.

2.7.1 Facts and evidence put forward for the first time during oral proceedings

In G. 4/92 (OJ 1994, 149), which explicitly relates to inter partes proceedings only, the Enlarged Board held that, in view of the right to present comments, a decision against a party who had been duly summoned but who failed to appear at oral proceedings could not be based on facts put forward for the first time during those oral proceedings. Evidence put forward for the first time during oral proceedings could not be considered unless it had been previously notified and it merely supported the assertions of the party which had submitted it. New arguments, on the other hand, did not constitute new grounds or evidence, but were reasons based on the facts and evidence already put forward. As regards new arguments, the requirements of Art. 113(1) EPC could thus be satisfied even if a party who chose not to appear did not have the opportunity to comment on them during oral proceedings.

According to Art. 15(3) RPBA 2020 (formerly: Art. 11(3) RPBA 2003, then Art. 15(3) RPBA 2007), "[t]he Board shall not be obliged to delay any step in the

proceedings, including its decision, by reason only of the absence at the oral proceedings of a party duly summoned who may then be treated as relying only on its written case." The preparatory documents to this Article (initially in the RPBA 2003) state that this provision does not contradict the principle of the right to be heard pursuant to Art. 113(1) EPC since that Article only affords the opportunity to be heard and, by absenting itself from the oral proceedings, a party gives up that opportunity (CA/133/02 dated 12 November 2002). This RPBA provision superseded the findings of G 4/92 with regard to the non-attendance at the oral proceedings before the boards (T 706/00). To the extent that G 4/92 supports the general admissibility of new arguments in appeal proceedings, it was also modified by the amendments to the RPBA introduced with effect from 1 May 2003 (the RPBA 2020 are applicable since 1 January 2020), which made the introduction of new arguments subject to the discretion of the boards (T 1621/09, summarising previous case law). G 4/92 still applies for the departments of first instance (see Guidelines E-III, 8.3.3.2 – March 2022 version). With regard to proceedings before the examining divisions, see also the notice published in OJ 2020, A124.

In T 2138/14 (ex parte) the board stated that it was established case law that a non-attending party's right to be heard under Art. 113(1) EPC must not be ignored (see in this chapter III.B.2.7). This view was confirmed by analogy to Opinion G 4/92. Although G 4/92 explicitly only concerned inter partes proceedings, the same principle has been applied in ex parte proceedings (see in this chapter III.B.2.6.1).

2.7.2 Non-attendance at oral proceedings before the boards – case law on G 4/92

In T 341/92 (OJ 1995, 373) the board held that it was possible to base a decision on a ground discussed for the first time during oral proceedings, at least if the stage reached in the case was such that the absent – albeit duly summoned – patent proprietors could have expected the question to be discussed and were aware of the actual basis on which it would be judged. The board did not consider itself prevented by reasons of procedural law from rendering a decision on the basis of Art. 123(3) EPC, on an issue brought up by the board for the first time at the oral proceedings. It argued that the situation differed from G 4/92 in that the extension of the protection conferred, to which objection had been made, arose solely from a comparison of the wordings of the claims, and therefore not from facts that had only been introduced during oral proceedings.

In T 802/12 the board likewise dismissed the appeal on the basis of Art. 123(3) EPC, which had been discussed for the first time at the oral proceedings. The board referred to T 341/92 and found that the appellant could have expected the amendments it had made to be examined at the oral proceedings as to their conformity with the requirements of the EPC (G 9/91, OJ 1993, 408). A party duly summoned to oral proceedings could not rely on the proceedings being continued in writing or the case being remitted to the department of first instance simply because he had not attended the oral proceedings (Art. 15(3) and (6) RPBA 2020; see in this chapter III.B.2.7.3 "Non-attendance at oral proceedings before the boards – Article 15(3) RPBA 2020").

In T 133/92 the board concluded that considering and deciding in substance on the maintenance of the patent on the basis of claims as amended during oral proceedings in

the absence of the appellants (opponents) did not conflict with the opinion of the Enlarged Board of Appeal in G 4/92. The board stated that the respondent's (patentee's) restrictions to the claims removed objections already raised by the appellants. In such a situation the appellants could not have been taken by surprise, because they had to expect that the respondent would try to overcome all objections. The submission of auxiliary requests was clearly not a "fact" within the meaning of G 4/92 (see also T 771/92, in which the board held that the submission of restricted claims was neither a fact nor could it be evidence). In cases T 912/91, T 202/92, T 856/92, T 890/92, (see also T 673/06 and T 235/08), which were based on similar facts, the board also concluded that Art. 113(1) EPC had been satisfied.

In T 1448/09 refusal of the European patent application was based on the common general knowledge as illustrated by document D3. That stance was first taken in the oral proceedings before the examining division, which the appellant did not attend. According to G 4/92, arguments could be presented at any time, even during oral proceedings in the absence of a party, but the same did not apply to new facts forming the basis for a decision. A reference to the common general knowledge could be presented as an argument, but the existence of that knowledge was a matter of fact. If its alleged existence was disputed, the facts relevant in that regard had to be established. That meant that the party against which this knowledge was cited had to have the opportunity to dispute or accept it. In the case in hand, the appellant had neither been aware of the examining division's invocation of the common general knowledge nor of the existence of document D3 until the decision was announced. This violated the appellant's right to be heard on the relevance of document D3 and, by extension, on the existence of the invoked common general knowledge.

In T 1049/93 the board held that, where a duly summoned respondent (opponent) chooses not to attend oral proceedings, a board can still consider prior art which might be an obstacle to the maintenance of the patent in suit. The opportunity to be heard is offered by summoning the parties to a hearing before the board. If the respondent chooses not to avail himself of this opportunity, his right to be heard is exhausted to the extent that it concerns facts and arguments in support of his position. G 4/92 should not be construed as extending or prolonging the rights of a voluntarily absent party.

In case T 414/94 the board stated that there was no general prohibition on amending requests during a party's absence from oral proceedings. An absent party (here, the opponent) must expect reactions of the opposing party (here, the patentee) within the legal and factual framework of the case established prior to oral proceedings, and the possibility of decisions taking account of, and being based on, such reactions.

In T 501/92 (OJ 1996, 261) the board ruled that if a new ground for allowing the appeal based upon the file record (here, the patentee's failure to file a formal request to maintain the patent) was raised by the appellant (opponent) for the first time during oral proceedings from which the respondent (patentee) was voluntarily absent, it would be contrary to Art. 113(1) EPC and the principles underlying G 4/92 to allow the appeal on the basis of this new ground without giving the respondent an opportunity to comment.